Master Services Agreement

> ⓘ DRAFT. Needs legal review before use (see README). Commercial values (rates, interest, caps) are placeholders: fill per client.

This Agreement is dated {{DATE}} between **{{DW_LEGAL_NAME}}** ({{DW_REG_NO}}) ("**datawazi**") and **{{CLIENT_LEGAL_NAME}}** ({{CLIENT_REG_NO}}) ("**Client**").

1. Structure

1.1 This Agreement sets the general terms for services datawazi provides to the Client.
1.2 Each project is described in a **Statement of Work** ("SOW") signed by both parties. Each SOW incorporates this Agreement.
1.3 Order of precedence: (a) Data Processing Agreement, for personal data; (b) this Agreement; (c) the SOW, unless the SOW expressly overrides a clause of this Agreement.

2. Services

2.1 datawazi will perform the services in each SOW with reasonable skill and care, using suitably qualified people.
2.2 datawazi is vendor-neutral. It will disclose any commercial relationship with a vendor it recommends.

3. Client responsibilities

3.1 The Client will provide timely access, information, decisions and people as set out in the SOW.
3.2 The Client is responsible for the accuracy of its source data and business rules, and for having a lawful basis to use personal data it provides.
3.3 If the Client delays its responsibilities, datawazi may adjust timelines and, by change request, fees.

4. Changes

Changes to a SOW require a written change request signed by both parties.

5. Acceptance

Deliverables are accepted as set out in the SOW. If the SOW is silent: on written acceptance; or 5 working days after delivery without a written list of specific failures against the acceptance criteria; or on use in production, whichever comes first.

6. Fees, expenses and payment

6.1 Fees and the payment schedule are set out in each SOW.
6.2 Third-party costs (software, cloud, AI services) are paid by the Client as set out in the SOW.
6.3 Invoices are payable within {{N}} days. Late amounts carry interest at {{RATE}} per annum. datawazi may suspend services on {{N}} days' written notice if undisputed invoices remain unpaid.
6.4 Fees exclude Sales and Service Tax and other applicable taxes, which are added where applicable.

7. Intellectual property

7.1 On full payment, the Client owns the deliverables created specifically for it under a SOW, including code, models, dashboards and documentation.
7.2 datawazi keeps ownership of its pre-existing materials, general know-how, templates and reusable tools ("**datawazi Materials**"). Where datawazi Materials are included in a deliverable, the Client gets a perpetual, non-exclusive, royalty-free licence to use and modify them for its internal business.
7.3 Third-party software is subject to its own licence terms.

8. Confidentiality

Each party will keep the other's confidential information confidential and use it only to perform this Agreement. This survives for {{3}} years after termination. It supersedes any prior NDA between the parties for information shared after this date.

9. Data protection

Where datawazi processes personal data on the Client's behalf, the parties will sign the Data Processing Agreement, and datawazi will act only on the Client's documented instructions.

10. AI-specific terms

10.1 AI outputs can be wrong. The Client remains responsible for decisions made using them. datawazi will design appropriate human review for consequential uses.
10.2 datawazi will not use Client data to train models for other clients. It will configure third-party AI services so that Client data is not used for provider training, where the provider allows it.

11. Warranties

11.1 For {{30}} days after acceptance, datawazi will fix defects where a deliverable does not meet its acceptance criteria, at no extra cost.
11.2 Otherwise, and to the extent permitted by law, all implied warranties are excluded.

12. Liability

12.1 Neither party is liable for indirect or consequential loss, or loss of profit, revenue or data (except data loss caused by its breach of clause 9).
12.2 Each party's total liability under each SOW is capped at {{the fees paid or payable under that SOW in the 12 months before the claim}}.
12.3 Nothing limits liability for fraud, wilful misconduct, or anything that cannot be limited by law. {{Lawyer to confirm carve-outs, e.g. confidentiality and data protection.}}

13. Non-solicitation

During each SOW and for {{6}} months after it, neither party will directly solicit the other's staff who worked on it, without consent. General job adverts are permitted.

14. Term and termination

14.1 This Agreement continues until terminated by either party on {{30}} days' written notice. Active SOWs continue under these terms unless also terminated.
14.2 Either party may terminate a SOW for material breach that remains unremedied {{14}} days after written notice.
14.3 On termination, the Client pays for work done and non-cancellable costs incurred up to the termination date. datawazi hands over work in progress and returns or deletes Client data.

15. Publicity

datawazi may name the Client as a client, or publish a case study, only with the Client's prior written approval.

16. General

Independent contractors · no assignment without consent (except to a successor of the business) · notices in writing to the addresses above or by email to {{EMAIL}} · force majeure · severability · entire agreement · counterparts and e-signatures · **governed by the laws of Malaysia**, disputes to {{the courts of Malaysia / arbitration at the AIAC, Kuala Lumpur}}.

For datawazi	For Client
Name / title:	Name / title:
Signature:	Signature:
Date:	Date: